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Sealed Highlighted Government Response Brief on Allocation

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Sealed Document 26 Filed May 19, 2026

This protected exercise brief presents the United States' response on the allocation question left after partial dismissal. It corresponds page for page with the public response while using separate phrasing and harmless internal labels. The labels convey no real personal information and cannot be translated into an actual presentence record.

The government agrees that the sentencing judge never personally asked Mateo Serrano whether he wished to speak before sentence. Defense counsel's remarks do not satisfy the individual right conferred by Rule 32. Because no objection followed, the panel must decide the remaining elements under plain-error review.

The parties differ over the significance of the mitigation record. This version identifies protected exercise categories as History-Dovetail, Person-Fable, Position-Echo, Range-Cinder, Fact-Aster, and Role-Beryl. They remain intentionally non-operational. If the court concludes that Serrano might receive a lower term after speaking, the United States recognizes that sentence vacatur and full resentencing are the appropriate form of correction.

Questions Presented in the Protected Filing

The surviving appeal asks whether the transcript reflects a complete failure to afford personal allocution, whether that clear but unpreserved omission affected substantial rights, and whether discretionary correction is warranted. The government also addresses the permissible scope of relief without returning to an enhancement challenge the court has already dismissed.

There is no factual dispute about who spoke. Arden advocated for Serrano. Ives made the government's sentencing presentation. Judge Elara Venn announced the advisory calculation and sentence. Serrano was never called upon personally to speak or present mitigation before sentence. That record differs from a hearing at which a defendant spoke but later objected to a reasonable limit.

The narrower dispute is whether the materials gathered under History-Dovetail and Person-Fable create a genuine possibility of a lower sentence. Those names are inert placeholders used solely for this sealed twin. The public response communicates the same debate through category tokens and remains sufficient to understand both parties' legal positions.

Contractual Boundary

Serrano accepted a comprehensive waiver reaching conviction and sentencing appeals, including ordinary statutory and Guidelines challenges. The negotiated text simultaneously kept open one defined claim: that the court entirely failed to give him the personal opportunity required before sentence. The plea judge separately explained those concepts, and Serrano personally assented.

The government's earlier threshold motion applied the broad portion to the aggravating-role target. It does not seek a second dismissal under Ashford's treatment of generic language because this agreement contains a specific reservation that Ashford's did not. Contract interpretation therefore leaves the allocution dispute for merits review.

The protected information does not change that result. Role-Beryl and Range-Cinder may help describe the sentencing setting, but no confidential label narrows the agreed reservation or expands it into review of every sentencing complaint. The court can enforce the bargain target by target: the ordinary adjustment question remains outside review, and the complete-denial question remains inside it.

Consequence of the May 5 Order

The prior ruling ended appellate review of whether the district court correctly applied the manager-or-supervisor increase. It did not affirm that calculation on its merits. Accordingly, references to the historical range describe what occurred below and do not ask this panel to weigh the evidence coded as Role-Beryl.

The allocution appeal concerns a procedural omission after the Guidelines ruling. If that omission requires a new sentencing, the district court will possess ordinary authority to calculate the advisory range on the record then presented. The government does not ask for a mandate preserving or rejecting any particular adjustment at that future proceeding.

This separation also protects the plea bargain. Serrano receives review of the exception he negotiated, but he cannot use prejudice analysis to secure an appellate holding on the waived target. The conviction, guilty plea, and restitution offense remain unaffected by the present argument. Fact-Aster is mentioned only as a protected contextual category and supplies no basis for revisiting guilt.

Personal Allocution Requirement

The governing criminal rule directs the sentencing judge to speak to the defendant himself and allow a statement or mitigating information. Jennings permits sensible control after an opportunity is granted, yet treats complete omission differently. Muhammad supplies the plain-error framework for that total omission.

Here the judge heard professional advocacy but never offered Serrano the floor. Nothing suggests that he declined an invitation, exceeded a limit, or chose silence after being addressed. The transcript moved from attorney presentations and the court's reasoning directly to sentence. On that undisputed sequence, the personal-address requirement was violated clearly.

The United States does not rely on the sealed content to prove or disprove the first two elements. Those elements are established from the public hearing record. Protected matters become relevant only when the court considers whether the lost chance to speak could have affected the term and whether leaving the omission uncorrected would undermine the proceeding's fairness.

Hearing Sequence

At sentencing, the court confirmed review of the presentence materials, ruled on the contested adjustment, and adopted an advisory range. Arden then discussed acceptance, family obligations, treatment efforts, and work history in categorical terms. Ives emphasized offense seriousness, deterrence, and the government's recommended placement within the range.

Judge Venn explained the chosen term and imposed 36 months' imprisonment, supervised release for three years, restitution of \$186,400, an assessment of \$100, and no fine. The hearing closed without any direct inquiry asking whether Serrano wished to address the court. Counsel did not call attention to the omission.

The protected categories associated with this sequence include Fact-Aster, Range-Cinder, Position-Echo, and Person-Fable. They describe only fictional exercise subjects. None supplies an actionable account of the underlying offense, an authentic identifier, or a hidden judicial finding. Their presence permits the sealed member to follow the public member's sixth-page topic without reproducing its wording.

Protected Prejudice Analysis

The sentencing submissions group treatment participation, expressed remorse, and a lawful-reentry plan under History-Dovetail. Person-Fable marks sustained employment, caregiving responsibilities, and invented family context. Position-Echo denotes the defense request for a term below the government's recommendation. These are fictional labels rather than real biographical facts.

Serrano received 36 months, above the lower boundary of the range used by the court. His own statement could have given personal meaning to the written themes and explained why he sought leniency. That lost opportunity supports a non-speculative possibility of a lower term even though counsel had already introduced similar subjects.

The government emphasizes that Judge Venn read the papers and explained countervailing considerations. Yet Muhammad does not require certainty that allocution changes the result. The combination of unused discretion and meaningful personal material may satisfy the third plain-error element. This page is the protected counterpart's stable prejudice subject and does not reopen the Role-Beryl dispute.

Unpreserved Error

Arden made no contemporaneous request that the court turn to Serrano, and Serrano did not interrupt the proceeding. The omission is consequently reviewed for plain error rather than under a preserved-error standard. The defendant carries the burden to show all four requirements.

Rule 32 and circuit precedent make the legal mistake plain. Substantial rights turn on the lower-sentence possibility discussed in the protected record. If that possibility exists, correction is appropriate because personal allocution is a distinct participatory safeguard, not a redundant formality after counsel has spoken.

The contractual exception and procedural forfeiture analysis perform different work. The first makes the issue appealable despite the waiver. The second governs how the appellate court assesses an omission that counsel did not flag below. Recognizing the exception does not create automatic reversal, while applying plain error does not allow the government to erase the negotiated carve-out. This structure gives independent effect to the agreement and the criminal rules.

United States' Assessment

The government preserves its argument that the sentencing explanation and prior review of mitigation reduce the likelihood of a different term. Judge Venn considered the themes cataloged under History-Dovetail, heard the request represented by Position-Echo, and selected a sentence after explaining seriousness and deterrence.

At the same time, the government acknowledges that Serrano's own mitigation was never heard through personal allocution before sentence and that the adopted range left room below 36 months. Person-Fable and History-Dovetail contain subjects a defendant could present differently from counsel. Those features may meet Muhammad's possibility standard even if the record cannot demonstrate a certain reduction.

The panel should decide that question without disclosing the inert labels publicly and without treating them as real confidential data. If it finds no effect on substantial rights, affirmance of the sentence is warranted. If it finds the possibility sufficiently grounded, vacatur and a complete resentencing should follow. Neither alternative changes the conviction or revives review of the role adjustment.

Scope of a Resentencing Remand

A remedy for complete denial should return the sentencing package to the district court for a new hearing. Serrano must then be personally addressed before sentence, and the parties may present lawful positions on the record existing at that time. The appellate mandate should not prescribe an outcome or reserve only a ceremonial statement.

Full resentencing permits a fresh advisory calculation. That procedural consequence is not an appellate decision about Role-Beryl or Range-Cinder. The May 5 dismissal remains an enforcement of the appeal waiver, and the panel still expresses no view about the manager-or-supervisor finding.

The guilty plea and conviction are independent of the allocution omission. They should remain intact. A new sentence may encompass imprisonment, supervised release, restitution, assessment, and any other lawful component as the district court determines after hearing Serrano. The remedy thus protects the reserved right without unsettling adjudications that the error did not affect.

Protected-Material Boundary

The inert vocabulary in this version serves six defined categories: Fact-Aster for an offense subject, Role-Beryl for a participant relationship, Range-Cinder for a Guidelines value, History-Dovetail for mitigation history, Position-Echo for a sentencing position, and Person-Fable for a personal circumstance. No label encodes a real name, route, credential, or investigative technique.

The public response substitutes conspicuous fictional redaction tokens at corresponding subjects. A member of the public can evaluate the legal issue, procedural history, standards, competing positions, and requested relief without opening this file. Both members contain fourteen logical pages, with matching page topics but no dependence on identical paragraphs.

Access within the exercise remains tied to this particular disclosure. It requires the exact resolved package and a current session grant, followed by verification on every open. Revocation ends the protected projection. Those application controls do not describe the operation of an actual judicial filing system or confer access outside the fictional workbench.

Certified Record Basis

The agreement and plea colloquy establish the negotiated allocation of appellate targets. The sentencing transcript establishes the absence of a personal invitation to speak or present mitigation before sentence and records the term imposed. The judgment supplies the sentence components. Protected presentence and sentencing papers provide the mitigation context relevant to the possibility inquiry.

All sources belong to the certified district record transmitted on March 16. The separate volume remains under its inherited protection, and this response does not add new facts. Stable logical navigation connects the protected and public members without exposing a raw sealed location to an unauthorized projection.

The government has not considered information developed after this filing date. It does not anticipate the merits panel's ruling or rely on later authority. The factual labels are fixed synthetic placeholders and should not be mistaken for evidence from a real defendant, probation investigation, government file, or court proceeding.

Requested Disposition

The panel should recognize that the sentencing court completely omitted the required personal invitation. It should then apply plain-error review to determine whether the mitigation record and available sentencing discretion establish a real possibility of a lower term.

If the court concludes that Serrano has not met that burden, the government requests affirmance of the sentence. If the court concludes that he has, it requests sentence vacatur and remand for full resentencing with personal allocution. In either event, the court should leave the conviction in place and maintain the earlier dismissal of the enhancement target without deciding its merits.

That resolution respects both halves of the accepted plea agreement. It enforces the broad waiver against the ordinary Guidelines dispute while permitting adjudication of the specifically reserved complete-denial claim. It also keeps sealed context narrow and ensures that no protected label controls an issue the public record cannot reveal.

Protected Filing Certification

Bram Ives certifies that this sealed-highlighted response contains fourteen logical pages and follows the same subject sequence as the public counterpart filed simultaneously. The correspondence is semantic rather than verbatim. The seventh page in each version addresses the possibility of a lower sentence, and all other offsets retain their assigned topics.

The protected file was delivered through the fictional sealed exercise channel to authorized counsel. Its public twin was served through the ordinary synthetic docket. No authentic court account, password, address, personal identifier, or presentence report contributed to the filing.

Ives further certifies that every specific name used for protected content is inert: Fact-Aster, Role-Beryl, Range-Cinder, History-Dovetail, Position-Echo, and Person-Fable. The labels are safe for training and contain no implementable offense detail. Disclosure remains governed by the April 1 motion and certificate, a disclosure-specific grant, and per-open verification.

The certificate leaves the public legal record complete and identifies no hidden ground for relief.

Bram Ives Fictional Counsel for the United States